

ORDINANCE NO. _____

APPROVED
By Alessandra at 2:23 pm, Apr 07, 2020

ENTITLED: “AN ORDINANCE ESTABLISHING ENFORCEMENT PROVISIONS FOR THE WYOMING STATEWIDE PUBLIC HEALTH ORDERS RELATED TO THE COVID-19 PANDEMIC.”

BE IT ORDAINED BY THE GOVERNING BODY OF THE CITY OF CHEYENNE, WYOMING:

Section 1. That this Ordinance hereby creates enforcement provisions within the Cheyenne City Code in response to the current Wyoming Public Health Orders, the “SECOND CONTINUATION OF STATEWIDE PUBLIC HEALTH ORDER CLOSING BARS, RESTAURANTS, THEATERS, GYMNASIUMS, CHILD CARE FACILITIES, K-12 SCHOOLS, COLLEGES, UNIVERSITIES, AND TRADE SCHOOLS STATEWIDE” issued by Alexia Harrist on April 3, 2020, and “SECOND CONTINUATION OF STATEWIDE PUBLIC HEALTH ORDER #2: FORBIDDING GATHERINGS OF TEN (10) PEOPLE OR MORE” issued by Alexia Harrist on April 3, 2020, ~~and any further Statewide Public Health Orders issued by the State Health Officer and Countywide Public Health Orders issued by the Laramie County Health Officer.~~

Section 2. Violation of any Order referenced herein above, ~~Statewide Order of the State Health Officer, or any Countywide Order of the Laramie County Health Officer, entered in response to the COVID-19 pandemic,~~ including any continuation of those Orders, shall constitute a civil violation punishable by a fine established herein. Notice of a civil violation shall be issued by a civil citation. It is the intent of this Ordinance that no citation shall be issued unless the individual or entity refuses to disperse, or otherwise comply with the Statewide Orders, upon lawful command to do so.

- A. First violation: \$50.00 fine. A person who commits a first violation of this section shall be fined fifty dollars (\$50.00).
- B. Second violation: \$100.00 fine. A person who commits a second violation of this section shall be fined one hundred dollars (\$100.00).
- C. Any subsequent violation: A person who commits a third or subsequent violation of this section shall be fined two hundred dollars (\$200.00).

Section 3. Business establishments and venues where gatherings of people occur in numbers greater than ten (10) are required to impose conditions that ensure compliance with the Statewide Orders. Failure to ensure compliance is a civil violation subject to the same fines noted above. Each violation of an Statewide Order, ~~measured by the number of people in violation,~~ is a separate offense. Managers of business establishments subject to this requirement, ~~as well as any individual in any organization who is responsible for ensuring compliance with this requirement,~~ are individually subject to citation, as well as the entity itself. This requirement shall not apply to businesses whose essential personnel are required to work closer to one another, or in greater numbers, than the social distancing requirements. In those instances, it shall be the responsibility

of the establishment, ~~and the manager, and any individual with responsibility~~ to ensure that workers are ~~wearing appropriate protective equipment adequately protected by the use of masks, gloves, and other personal protective equipment as the circumstances require.~~

Section 4. Any person, business establishment, or venue issued a civil citation pursuant to Section 2 of this Chapter shall have fifteen (15) days from the day following issuance of the civil citation to request a hearing before a municipal court judge. A request for a hearing shall be made in writing and provided to the municipal court clerk. A request for a hearing may be made by email.

Section 5. A hearing under this Chapter shall be conducted pursuant to the Wyoming Administrative Procedure Act. The City shall bear the burden of proof that a given person, business establishment, or venue did violate this Chapter by a preponderance of the evidence.

Section 6. Any person, business establishment or venue aggrieved by a decision in a civil hearing under this Chapter may seek judicial review in the manner provided by the Wyoming Administrative Procedure Act and the Wyoming Rules of Appellate Procedure.

Section 7. If a person, business establishment or venue who requested a hearing in accordance with Section 4 of this Chapter fails to appear at their scheduled hearing, the municipal court clerk shall enter default judgment for the City and impose a fine in the amount stated on the issued citation.

Section 8. The municipal court clerk may utilize a third-party collection agency to collect defaulted fines pursuant to Section 7 of this Chapter.

Section 9. This ordinance shall sunset ~~on September 1, 2020, or and~~ cease to be effective upon any aspect of any of the ~~Statewide or Countywide~~ Orders when that aspect ceases to be in effect.

Section 10. This ordinance shall be in full force and effect upon the passage.

FIRST READING: _____

SECOND READING: _____

THIRD AND FINAL READING: _____

Marian J. Orr, Mayor

(SEAL)

Attest:

Kristina F. Jones, City Clerk

Publish: Wyoming Tribune Eagle